

		There is no information as to how many of the class members or aggrieved employees speak and/or read English, which might require that the class notice also be in another language. Rather than having class members prepare their own opt-out requests, the class notice must include an exclusion form that class members can complete and submit. The form should be referenced in the class notice. Counsel should propose a realistic Final Approval Hearing date, bearing in mind that all papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff's attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiff's declaration to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. In addition, the class members and PAGA members must be notified of the Final Approval Hearing date, which should be stated in Section 5 on page 6 of the class notice. At the top of page 1 of the class notice, the following phrase: "If you: (1) are or were employed by Bristol Farms in California as an hourly-paid non-exempt employee from October 22, 2017, to March 30, 2025 you could receive a payment from a class action and PAGA settlement," must be corrected to state: "If you are or were employed by Bristol Farms in California as an hourly-paid non-exempt employee from October 22, 2017 to March 30, 2025, you could receive a payment from a class action and PAGA settlement." Plaintiff is ordered to give notice of this ruling to the LWDA and Defendant.
2	30-2024-01401021 Rivera vs. Marway Power Systems Inc.	The tentative ruling is to continue Plaintiff Delmy Rivera's ("Plaintiff") Motion for Preliminary Approval of Class Action and PAGA Settlement to December 14, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel

	must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. The Class and PAGA Periods are defined as ending on January 29, 2026. However, the escalator clause in Paragraph 10 of the settlement agreement provides for the option to either increase the settlement amount or change the Class Period such that some of the class members might no longer be included in the settlement. This court, however, will not approve a settlement that results in class members being told they are in the settlement but later being told they are not included in the settlement. Thus, defendant will have to either rely on or take another look at its estimated number of class members or select the increased payment option. If the parties want to preserve the option calling for a reduction of the Class Period, rather than an increase in the settlement amount, they must determine if the escalator clause applies before sending out the class notice, and have the class notice include the adjusted end date and not be sent to non-participants. The court is inclined to grant approval of an attorneys' fees request of 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. The parties may either reduce the attorneys' fees request by amendment to the settlement agreement and the class notice, or Plaintiff must provide documentation and support for any request higher than this percentage at the final approval stage. The motion fails to provide the estimated high and low payments to be paid to class members. The average payment must be provided for preliminary approval, but if the high and low estimated payments are not available at this time, they must be provided in the motion for final approval. The allocation of only 20% of the settlement payments for wages appears to be low. Either an increase to 33 1/3% or an explanation of why the figure is not at least 33 1/3% is required. Paragraphs 7.6 and 7.8.4 of the settlement agreement and the class notice state that the Administrator will resolve any
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	workweek disputes. The documents should reflect instead that, while the Administrator and the parties will attempt to resolve any such dispute, the court will ultimately decide any unresolved dispute. Paragraph 7.5.2. of the settlement agreement states that the administrator shall make the final determination as to the authenticity of an opt-out request. The documents should reflect instead that the court will ultimately decide any unresolved dispute regarding the authenticity of an opt-out request. The class release in Paragraph 5.2 of the settlement agreement includes a release of claims for “failure to reimburse necessary business expenses,” but that is not a claim asserted in the operative complaint. Further, there is no exposure analysis for this claim. The court will not approve a class release that releases claims outside the scope of the complaint. The court will not approve a direct release of claims by the State of California or the LWDA. Paragraph 5.3 of the settlement agreement must be amended to state: “Plaintiff, on behalf of herself, the State of California and the LWDA, and all PAGA Members are deemed to release . . .” The following corrections must be made to the class notice: (1) Rather than having class members prepare their own opt-out requests, the class notice must include an exclusion form that class members can complete and submit. The form should be referenced in the class notice. (2) The class notice must have page numbers on every page. (3) Class members and aggrieved employees may object to the amount of PAGA penalties allocated from the settlement. The third row of the table on Pages 2-3 of the class notice, should state “Participating Class Members Can Object to the Class Settlement,” and the phrase “but not the PAGA Settlement” should be deleted. (4) Section 8 of the class notice lists the wrong address and wrong department for the final approval hearing. Counsel should propose a realistic Final Approval Hearing date, bearing in mind that all papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff’s attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiff’s declaration to support the enhancement request, must be filed at least 16 calendar days before the Final
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		Approval Hearing date to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. Plaintiff is ordered to give notice of this ruling to the LWDA and Defendant.
3	30-2024-01408266 Immings vs. Great Subs SC II, LLC	Plaintiff Stephanie Immings' ("Plaintiff") Motion for Preliminary Approval of Class Action and PAGA Settlement is GRANTED ON THE CONDITION THAT Plaintiff provide the Request for Exclusion Form that must be included with the class notice for the court's approval. A Final Approval Hearing is set for February 22, 2027 at 1:30 p.m. All papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff's attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiffs' declarations to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date, to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. Plaintiff is ordered to give notice of this ruling to the LWDA and Defendants.
4	30-2024-01447843 Sierra vs. Direct Edge Media, Inc.	The tentative ruling is to continue Plaintiff Benito Sierra's ("Plaintiff") Motion for Preliminary Approval of Class Action and PAGA Settlement to December 14, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved.